

Line 1

Case Name: *Shaun Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant City of San Jose (“Defendant” or “City”) demurs to the Complaint of Plaintiffs Shaun Allen Laliberte, individually and as successor in interest to Edward Alan Kirk, and Jacqueline Marie Kirk, individually and as successor in interest to Edward Alan Kirk (“Plaintiffs”) on its Third Cause of Action for Dangerous Condition of Public Property and Wrongful Death and the Fourth Cause of Action for Violation of Government Code Section 815 *et seq.* and Wrongful Death on the grounds that these causes of action are uncertain, ambiguous, and unintelligible, and fail to state facts sufficient to constitute a cause of action against the City. Code Civ. Proc. § 430.10(e)-(f). Notice of Demurrer (the “Demurrer”) at 1:28-2:6 (filed: July 28, 2026).¹

The Demurrer came on for hearing on September 11, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Fact Allegations & Procedural Background

Plaintiffs bring this action individually and as successor in interest to Edward Alan Kirk (“Decedent”). Decedent is Plaintiffs’ biological father. (Complaint, ¶¶ 1-2.) Plaintiffs name the following defendants: F.S. Trucking Company, Inc. (“FS Trucking”); Daniel Bonilla Estacio (“Estacio”); Martinez Granite & Marble, Inc. (“G&M”); Mauro Gaytian Martinez (“Martinez”); Francisco Martinez Antonio (“Antonio”); the City; County of Santa Clara (“the County”); State of California (“the State”); State of California Department of Transportation (“DoT”); Caltrans (the City, the County, the State, DoT, and Caltrans are collectively referred to as “Government Defendants”); Jayden Rowedda (“Rowedda”); and Edward Kirk Jr. (“Edward Jr.”) (collectively with Rowedda, “Nominal Defendants”). According to the allegations of the complaint, Decedent was killed in San Jose on August 29, 2024, when two vehicles, operated by Estacio and Martinez respectively, struck Decedent’s motorcycle (“Subject Crash”). (Complaint, ¶¶ 20-21.) Estacio was operating a vehicle in the course and scope of his employment with FS Trucking. (Complaint, ¶ 22.) Martinez was operating a separate vehicle in the course and scope of his employment with G&M, owned by Antonio. (Complaint, ¶ 23.)

On August 4, 2025, Plaintiffs initiated this action by filing the Complaint, asserting

¹ The Third and Fourth Causes of Action are the only causes of action in the Complaint that are made against Defendant City of San Jose.

the following claims:

- 1) Motor Vehicle Negligence and Wrongful Death [against FS Trucking, Estacio, Martinez, G&M, and Antonio];
- 2) Negligent Entrustment of a Motor Vehicle and Wrongful Death [against FS Trucking, G&M, and Antonio];
- 3) Dangerous Condition of Public Property and Wrongful Death [against Government Defendants] (the “Third Cause of Action”);
- 4) Violation of Government Code section 815, et seq. and Wrongful Death [against Government Defendants] (the “Fourth Cause of Action”); and
- 5) Declaratory Relief [against Nominal Defendants].

On July 28, 2026, the City filed a Demurrer to the complaint. Plaintiff opposes the demurrer and the City filed a reply.

Analysis of the Demurrer

I. Legal Standard on Demurrer

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*).)

“A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.)

Courts “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts “construe the complaint ‘liberally ... with a view to substantial justice between the parties[.]’” (*Id.*) “A demurrer must dispose of an entire cause of action to be sustained.” (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a

complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

Even if a demurrer is sustained, leave to amend the complaint is routinely granted under California law. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

II. Demurrer to the Third Cause of Action

The City demurs to the Third Cause of Action on the grounds that it is uncertain under Section 430.10(f) and also fails to state facts sufficient to constitute a cause of action under Section 430.10(e). Demurrer at 1:28-2:6. The Court will now analyze each of these independent grounds in turn.

A. The Third Cause of Action is not uncertain under C.C.P. § 430.10(f).

“[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that the defendant cannot reasonably respond.’ ‘A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.’” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 [internal citations omitted].)

Here, while the Third Cause of Action is not a model of clarity, the Court finds that it is not uncertain within the meaning of Section 430.10(f) because it is not so incomprehensible that the City cannot reasonably respond to it. The City responds to it quite well. While the City vigorously disagrees with the Third Cause of Action, the City understands what the Third Cause of Action alleges against the City. Hence, there is no uncertainty.

Accordingly, the Demurrer to the Third Cause of Action under Code of Civil Procedure Section 430.10(f) on the ground it is uncertain is **OVERRULED**.²

² For the same reasons, the Court OVERRULES the City’s Demurrer to the Fourth Cause of Action on the ground that it is uncertain.

B. The Complaint fails to plead sufficient facts to constitute the Third Cause of Action under C.C.P. § 430.10(e).

A separate and distinct ground for its Demurrer that the City asserts is that the Complaint fails to allege sufficient facts to constitute a cause of action. The City points out that the Third Cause of Action is alleged in a conclusory matter and does not identify what act or omission by any public employee allegedly created what physical condition of the property or how that condition caused Decedent's collision. (Demurrer, p. 6: 25-28.) In Opposition, Plaintiffs argue they have alleged specifically and generally the relevant dangerous condition. (Opposition, p. 5:17-22.)

“[A] public entity is not liable for injuries except as provided by statute (Gov. Code § 815) and . . . section 835 sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property.” (*Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1129 (*Metcalf*) [citation omitted].) “To state a cause of action [against a government entity] every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty.” (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802.)

Further, “a claim alleging a dangerous condition may not rely on generalized allegations but must specify in what manner the condition constituted a dangerous condition. A plaintiff's allegations, and ultimately the evidence, must establish a physical deficiency in the property itself. A dangerous condition exists when public property is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself, or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” (*Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1347-1348 [internal citations and quotations omitted]; see also *Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 759 [“To establish a qualifying condition, the plaintiff must point to at least one physical characteristic of the property.”][Internal citations omitted].)

Here, the Complaint alleges that the Government Defendants, which include the City, owned, controlled, maintained, etc., the area where the Subject Crash occurred “so that the roadway created an unanticipated and dangerous area where views of the entire roadway are limited and/or blocked and creates hazards in the roadway area that constitutes a danger and a trap for unwary motorists (such as Decedent).” (Complaint, ¶ 50.) The Complaint further alleges that the “trap” was caused by the “lack of placement of the safety measures and lack of proper controls and/or markings and/or warnings at or leading up to this area of the roadway and the inclined/declined condition of the land/the offsets (including those caused by the railroad tracks).” (Complaint, ¶ 51.) Paragraph 51 additionally lists other issues with the road that posed substantial danger and that were known to the Government Defendants, such as a lack of warning signs indicating holes or uneven features of the road or the narrow lanes. (*Id.*)

In this case, Plaintiffs allege physical characteristics of the street such as blocked views, holes in the road, narrow or improperly sized lanes, slippery roadway, and other issues caused by railroad tracks that constituted concealed dangers/traps. Thus, in some

respects the Complaint does allege several *possible* roadway conditions. But that said, given that this is a claim against government entities, the pleading needs to specifically plead in what manner a *specific condition* constituted a dangerous condition—and *this Complaint fails to do so*. (See e.g., *Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d 1, 7; *Shields v. County of San Diego* (1984) 155 Cal.App.3d 103, 113 [“because recovery is based on a statutory cause of action, the plaintiff must set forth facts in his complaint sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied. General allegations are regarded as inadequate.”].)

Accordingly, the Demurrer to the Third Cause of Action under Code of Civil Procedure Section 430.10(e) on the ground it fails to state facts sufficient to constitute a cause of action is **SUSTAINED**.

That said, in light of the liberality of California law permitting amendment to an initial complaint (like we have here) when a demurrer has been sustained (*Angie M.*, 37 Cal. App. 4th at 1227), the Court will give Plaintiffs this one fair opportunity to amend the Complaint to try to remedy the pleading deficiencies identified in this Order above regarding the Third Cause of Action. Accordingly, the Court gives Plaintiffs **LEAVE TO AMEND** the Complaint **within 15 days of today**.

C. The Complaint fails to plead sufficient facts to constitute the Fourth Cause of Action under C.C.P. § 430.10(e).

Just like it did regarding the Third Cause of Action, the City asserts that Complaint fails to allege sufficient facts to constitute the Fourth Cause of Action. (Demurrer, p. 9:6-7.) The City points out that the Complaint does not identify a specific public employee act or omission that caused Decedent’s crash. (*Id.* at p. 9:1-2.)

In Opposition, Plaintiffs contend that because the fourth claim incorporates the prior allegations, it is sufficiently pleaded. (Opposition, p. 7:20-23.)

“Except as otherwise provided by statute . . . [a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code § 815(a).) Here, after reviewing the pleading, the papers, and the record, the Court finds that the pleading is deficient because the Fourth Cause of Action relies on the same insufficient fact allegations as does the Third Cause of Action.

Accordingly, for the same reasons discussed in detail above on why the Court sustains the Demurrer on the Third Cause of Action, the Court also **SUSTAINS** the Demurrer to the Fourth Cause of Action under Code of Civil Procedure Section 430.10(e) on the ground it fails to state facts sufficient to constitute a cause of action. Likewise, the Demurrer is **SUSTAINED with LEAVE TO AMEND within 15 days of today**.

Conclusion & Order

For all the reasons explained above, the Demurrer of Defendant City of San Jose to Plaintiffs' Complaint on its Third Cause of Action for Dangerous Condition of Public Property and Wrongful Death and on its Fourth Cause of Action for Violation of Government Code Section 815 *et seq.* and Wrongful Death is **SUSTAINED with LEAVE TO AMEND within 15 days of today.**

SO ORDERED.

Date: September 11, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 2

Case Name: *Heather Rhines v. Michael H. Scott, et al.*

Case No.: 21CV388088

See ORDER above. (In light of the **Notice of Settlement of Entire Case** filed by Plaintiff on the eve of trial on September 8, 2026, this Motion is **OFF CALENDAR.**)